

Assembly Bill No. 2–Select Committee  
on Jobs and Economy

CHAPTER.....

AN ACT relating to alcoholic beverages; revising the manner in which a payment from a retail liquor store to a wholesale dealer for delivery of certain alcoholic beverages must be made by certain persons; and providing other matters properly relating thereto.

**Legislative Counsel’s Digest:**

Existing law prohibits a wholesale dealer from selling liquor to a retail liquor store under certain circumstances relating to the method and timing of payments for the delivery of that liquor. Existing law: (1) with certain exceptions, requires payment from a retail liquor store to a wholesale dealer for the delivery of beer, wine or distilled spirits to be made by electronic funds transfer; (2) requires the wholesale dealer to initiate the electronic funds transfer by initiating the withdrawal of funds from the bank account of the retail liquor store; (3) requires the electronic funds transfer to be completed not later than the expiration of the 30th day after the date of delivery of the beer, wine or distilled spirits; and (4) prohibits a wholesale dealer from paying or being required to pay, directly or indirectly, any fees incurred by the retail liquor store for such an electronic funds transfer. Existing law also authorizes a retail liquor store to elect to pay for the delivery of beer, wine or distilled spirits by credit card. If a retail liquor store so elects, existing law requires the retail liquor store to: (1) notify the wholesaler of the election; and (2) be responsible for all costs associated with processing the credit card transaction. (NRS 369.485)

For the purposes of the regulation of gaming in this State, existing law defines certain types of nonrestricted licenses and restricted licenses relating to the conduct of gaming. A person who holds a nonrestricted license is licensed to operate: (1) 16 or more slot machines; (2) any number of slot machines together with any other game, gaming device, race book or sports pool at one establishment; or (3) a slot machine route. (NRS 463.0177) A person who holds a restricted license is licensed to operate not more than 15 slot machines and no other game or gaming device, race book or sports pool at an establishment in which the operation of slot machines is incidental to the primary business of the establishment. (NRS 463.0189)

This bill exempts from the requirements of existing law relating to electronic funds transfers and credit card transactions between a wholesale dealer and a retail liquor store: (1) a person who holds a nonrestricted license and certain affiliates of such a person; and (2) a person who holds a restricted license, if the person also holds a nonrestricted license or is an affiliate of a person who holds a nonrestricted license.

EXPLANATION – Matter in ***bolded italics*** is new; matter between brackets ~~fomitted-material~~ is material to be omitted.

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THE PEOPLE OF THE STATE OF NEVADA, REPRESENTED IN  
SENATE AND ASSEMBLY, DO ENACT AS FOLLOWS:

**Section 1.** NRS 369.485 is hereby amended to read as follows:  
369.485 1. The Legislature hereby declares:



36th Special Session (2025)

(a) That it is a privilege to engage in the business of selling intoxicating liquor at the wholesale or retail level in this state;

(b) That the Legislature finds it necessary to impose certain restrictions on the exercise of such privilege; and

(c) That it is the policy of this state to preclude the acquisition or control of any retail liquor store by a wholesale liquor dealer.

2. As used in this section, unless the context requires otherwise:

(a) "Delinquent in payment" means the failure of a retail liquor store to make payment to a wholesale dealer for liquor on or before the 15th day of the month following delivery by the wholesale dealer.

(b) "Electronic funds transfer" means the electronic transfer of money from one bank account to another, either within a single financial institution or across multiple financial institutions through computer-based systems.

(c) "Payment" means the full legal discharge of the debt by the wholesale dealer's receipt of cash or its equivalent, including ordinary and recognized means for discharge of indebtedness excepting notes, pledges or other promises to pay at a future date. A postdated check, a check not promptly deposited for collection or a check dishonored on presentation for payment does not constitute payment.

(d) "Payment in cash" means the full legal discharge of the debt by delivery of cash, money order, certified check or a cashier's or similar bank officer's check.

3. A wholesale dealer shall not:

(a) Loan any money or other thing of value to a retail liquor store.

(b) Invest money, directly or indirectly, including through a subsidiary or agent, in a retail liquor store.

(c) Furnish or provide any premises, building, bar or equipment to a retail liquor store.

(d) Participate, directly or indirectly, in the operation of the business of a retail liquor store.

(e) Sell liquor to a retail liquor store except for payment on or before delivery or on terms requiring payment by the retail liquor store before or on the 10th day of the month following delivery of such liquor to it by the wholesale dealer.

(f) Sell liquor to a retail liquor store which is delinquent in payment to such wholesale dealer except for payment in cash on or before delivery.



4. At the time a wholesale dealer makes a delivery of beer, wine or distilled spirits to a retail liquor store, the wholesale dealer and retail liquor store shall review the invoice of the delivery to verify its accuracy. If the invoice is accurate, the retail liquor store shall sign the invoice to confirm the accuracy of the invoice.

5. Except as otherwise provided in paragraph (f) of subsection 3 ~~H~~ and subsection 7, unless a retail liquor store elects to pay by credit card pursuant to subsection 6, payment from a retail liquor store to a wholesale dealer for the delivery of beer, wine or distilled spirits must be made by electronic funds transfer. The wholesale dealer shall initiate the electronic funds transfer by initiating the withdrawal of funds from the bank account of the retail liquor store. The electronic funds transfer must be completed not later than the expiration of the 30th day after the date of delivery of the beer, wine or distilled spirits for which the electronic funds transfer constitutes payment. A wholesale dealer shall not pay or be required to pay, directly or indirectly, any fees incurred by the retail liquor store for an electronic funds transfer made pursuant to this section.

6. ~~IA~~ *Except as otherwise provided in subsection 7, a* retail liquor store may elect to pay for the delivery of beer, wine or distilled spirits by credit card. If a retail liquor store elects to pay by credit card, the retail liquor store shall notify the wholesale dealer of the election. The retail liquor store is responsible for all costs associated with processing the credit card transaction.

7. *The provisions of subsections 5 and 6 do not apply to a retail liquor store that is operated by or located on the same premises as:*

*(a) A person who holds a nonrestricted license or an affiliate of a person who holds a nonrestricted license. As used in this paragraph:*

*(1) "Affiliate" has the meaning ascribed to it in NRS 78.412 or 463.0133.*

*(2) "Nonrestricted license" has the meaning ascribed to it in NRS 463.0177.*

*(b) A person who holds a restricted license, if the person also holds a nonrestricted license or is an affiliate of a person who holds a nonrestricted license. As used in this paragraph:*

*(1) "Affiliate" has the meaning ascribed to it in NRS 463.0133.*

*(2) "Nonrestricted license" has the meaning ascribed to it in NRS 463.0177.*

*(3) "Restricted license" has the meaning ascribed to it in NRS 463.0189.*



8. On the 15th day of the month following the delivery of liquor and on the 15th day of each month thereafter, the wholesale dealer shall charge a retail liquor store which is delinquent a service charge of 1.5 percent of the amount of the unpaid balance.

~~18.1~~ 9. The Department may impose the following penalties on a wholesale dealer who violates any of the provisions of this section within any 24-month period:

(a) For the first violation a penalty of not more than \$500.

(b) For the second violation a penalty of not more than \$1,000.

(c) For the third and any subsequent violation a penalty of not more than \$5,000 or by a license suspension, or by both such penalty and suspension.

~~19.1~~ 10. The Department may, upon its own motion, and shall, upon the verified written complaint of any wholesale dealer, investigate the possible violation of any of the provisions of this section by any wholesale dealer.

**Sec. 2.** Notwithstanding the provisions of NRS 218D.430 and 218D.435, a committee may vote on this act before the expiration of the period prescribed for the return of a fiscal note in NRS 218D.475. This section applies retroactively from and after November 13, 2025.

**Sec. 3.** This act becomes effective upon passage and approval.

